

CONSENT ORDER

This order is made by the investigation committee upon the respondent's acceptance of a proposal by the committee under section 73(1) of the *Professional Governance Act*.

Between

Association of BC Forest Professionals
("ABCFP")

And

Brian SMART, RPF #2813
("SMART")

Background

1. SMART has been licensed as a Registered Professional Forester ("RPF") since 1993.
2. In 2009, the Klahoose Forestry Limited Partnership (KFLP) was awarded Community Forest Agreement K4C (K4C).
3. KFLP entered into a contract for service with Theechim Management Group (Theechim) to provide forest management services for K4C. Theechim then entered into a contract for service with SMART to prepare K4C Site Plans (SPs).
4. The Compliance and Enforcement (C&E) branch of the Ministry of Forests, Lands, Natural Resources Operations and Rural Development (FLNRORD) conducted an investigation (C&E Investigation) into KFLP forestry practices of K4C. As a result, C&E alleged that KFLP committed 61 contraventions in total

across 50 cutblock areas over the time period of approximately 2010 to 2015 within K4C.

5. In summary, the C&E Investigation found 43 cutblocks, totaling 565.8 hectares (ha), were planted with 553,820 seedlings from the wrong seedlot for the required sub-maritime seed zone. Harvesting occurred on two cutblocks prior to an SP being in place. In addition, unauthorized harvesting of approximately 400 m³ to 4,260 m³ of Crown timber occurred from areas ranging from 1.4 ha to 5.8 ha. Finally, 2.56 ha of unauthorized harvest of designated Old Growth Management Area (OGMA) occurred.
6. On August 12, 2019, the District Manager for the Sunshine Coast Natural Resource District of the FLNRORD determined that KLFP contravened sections 10(1)(a), 21(1), 52(1), and 52(3) of the *Forest and Range Practices Act (FRPA)*, as well as sections 43(4) and 51(1) of the *Forest Planning and Practices Regulation (FPPR)* and levied a financial penalty to KLFP.
7. In February 2021, the *Professional Governance Act (PGA)* replaced the *Foresters Act* and the Investigation Committee assumed the statutory authority of the Complaints Resolution Committee under the revised bylaws of the ABCFP.
8. The complaint concerns SMART's practices prior to February 2021, therefore, the ABCFP Bylaws under the previous *Foresters Act* prevail.
9. The ABCFP became aware of the FLNRORD determination.
10. On June 21, 2021, the ABCFP authorized an investigation of the matter pursuant to Bylaw 12-5(2) under section 66(1) of the *PGA*.
11. On July 22, 2021, the ABCFP notified SMART of its authorization for an investigation of the matter. SMART was given an opportunity to respond to the allegations against him.
12. On July 28, 2021, SMART submitted a response to the investigation.

13. On August 13, 2021, the ABCFP convened an Investigation Panel to investigate the matters.
14. The investigation found SMART signed and sealed SPs which contained errors and omissions, demonstrating a lack of knowledge of statutory, regulatory, and policy requirements. In addition, SMART did not ensure SPs were consistent with the approved Forest Stewardship Plan (FSP) and seedling requests were consistent with the Chief Forester's Standards for Seed Use. Finally, the investigation found SMART did not ensure accurate mapping of cutblock boundaries.
15. Due to the deficiencies noted in item 14, the investigation found SMART failed to maintain a high standard in relation to the SPs he signed and sealed.
16. Finally, the investigation found SMART failed to maintain sufficient knowledge relating to the preparation of SPs.
17. On August 25, 2023, the Investigation Panel submitted the investigation report to the ABCFP.
18. On December 12, 2023, SMART was provided a copy of the investigation report and invited to provide a response. SMART submitted his response to the ABCFP on December 28, 2023.
19. On January 29, 2024, the Investigation Committee reviewed the investigation report and SMART's response. The Investigation Committee voted unanimously to direct the Registrar to attempt to resolve the complaint by requesting SMART agree to a Consent Order, pursuant to Bylaw 12-13(6)(d).
20. On February 1, 2024, the ABCFP notified SMART of the Investigation Committee's assessment that he contravened the Code of Ethics in ABCFP's former Bylaw 12 under the *Foresters Act*.

Admissions

21. SMART admits, under section 73(3)(b) of the *PGA*, that:
- (a) He signed and sealed SPs which contained errors and omissions, demonstrating a lack of knowledge of statutory, regulatory, and policy requirements. In addition, he did not ensure SPs were consistent with the approved Forest Stewardship Plan (FSP) and seedling requests were consistent with the Chief Foresters Standards for Seed Use. Finally, he did not ensure accurate mapping of cutblock boundaries. Due to the aforementioned deficiencies, he contravened former ABCFP Bylaw 11.3.3
 - (b) His failure to maintain high standards in daily work by signing and sealing SPs that contained errors and omissions, ensuring harvest boundaries were accurately mapped, and ensuring correct seedlings were requested, contravened former ABCFP Bylaw 11.4.1.
 - (c) He failed to maintain sufficient knowledge in his field of study, contravening former ABCFP Bylaw 12.2.1

Disposition

22. SMART consents to the Investigation Committee making the following orders:
- (a) That SMART is reprimanded under section 75(6)(a) of the *Professional Governance Act*;
 - (b) That SMART complete the ABCFP Code of Ethical and Professional Conduct e-course;
 - (c) That SMART complete the Thompson Rivers University NRSC 3201:Silviculture course, or an alternative course acceptable to the Audit and Practice Review Committee, under section 75(6)(f) of the *Professional Governance Act*;
 - (d) That SMART will pay a penalty of \$1,000.00 to the ABCFP under section 75(6)(b) of the *Professional Governance Act*; and

23. SMART acknowledges that this consent order has the same effect as an order made by a panel of the Discipline Committee of the ABCFP after a hearing under section 75 of the *Professional Governance Act*.
24. SMART acknowledges that the ABCFP will be required under ABCFP Bylaw 13-7 to notify the public of this consent order by publishing a discipline digest on the ABCFP's website and in its newsletter that will contain a summary of the circumstances of this case, including the full text or summary of this order.
25. SMART acknowledges that he has read this consent order, fully understands its terms, and has voluntarily accepted it for the purpose of fully and finally resolving all matters arising out of or related to the Complaint.
26. SMART understands that he has the right to seek independent legal advice and has been encouraged to seek such advice before signing this consent order.

This consent order has been proposed by the Investigation Committee and is accepted by SMART effective this 29th day of November 2024.



Bruce Blackwell, RPF

Chair, Investigation Committee



Brian SMART, RPF #2813



Witness